

MEMORANDUM TO THE FILE

**Subj: DETERMINATION THAT ONLY ONE SOURCE IS REASONABLY AVAILABLE FOR A FAR PART 13 ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD**

**I. BACKGROUND:**

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement (or portion of the requirement to be sole-sourced) is not expected to exceed the simplified acquisition threshold.

**II. DESCRIPTION OF ITEM OR SERVICE:**

**AWC-102 Ultra, AWC C-234 and AWC Cleanflux Bio are chemicals used in the treatment process pre nanofiltration membranes. The listed chemicals are needed to inhibit inorganic scale formation in membrane separation processes. The chemical are pumped into our processes prior to being introduced to our nanofiltration membranes and it helps protect them. Without these products, membrane cartridges would fail, costing the government millions of dollars in replacement membranes.**

**III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING *(select all that apply)*:**

**A. ☐ *ONLY ONE RESPONSIBLE SOURCE* *(select all that apply)*:**

1. ☐ **RESTRICTIVE RIGHTS.** The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.
2. ☐ **EXCLUSIVE LICENSING AGREEMENTS.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

CUI

Controlled by: DON, USMC, I&L HCA  
Controlled by: MCAS Cherry Point Facilities  
Maintenance Directorate, Utilities Division  
CUI Category: PROCURE

Determination that Only One Source is Reasonably Available (Including Brand Name) – FAR Part 13 Acquisitions under the SAT

3. \_\_\_\_ OTHER REASONS.

B.  X  **BRAND NAME**

**Biwater, who is OEM of the system, requires these chemicals from American Water Chemicals (AWC) MUST be used for maintenance and cleaning of the membrane treatment systems equipment in order to satisfy the performance criteria and warranty conditions specified in contract documents. In addition, AWC-102 Ultra, AWC C-234 and AWC Cleanflux Bio are chemicals approved for use by all major membrane manufacturers. It is environmentally compatible, especially where discharge of waste into the environment is a concern. The product is produced to meet the USMC standards for the treatment of Drinking Water produced aboard MCAS Cherry Point.**

**C. \_\_\_\_ URGENT AND COMPELLING.** The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required:

V. CERTIFICATIONS: